



Notification Waiver Determination

Telstra – indefeasible rights over dark fibre on Tabua, Proa and Bulikula subsea cables

Acquisition	Telstra International Networks Pty Ltd (TINS) and Telstra Australia Networks Pty Ltd (TANS), each a wholly owned subsidiary of Telstra Group Limited (Telstra), applied for a notification waiver in respect of their proposed acquisition of indefeasible rights of use (IRUs) over dark fibre on three new subsea cables (the Tabua, Proa and Bulikula cables, together, the Pacific Connect Cables) from Manta Ray Solutions LLC and Perch Infrastructure Pty Ltd, being indirect subsidiaries of Google LLC, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	13 July 2026

Parties to the Acquisition	TINS and TANS, supply international telecommunications services to government, enterprise, and business customers outside Australia. In Australia, Telstra provides mobile, fixed-line, internet, and data services to consumers, businesses, and government, amongst other telecommunications and technology infrastructure. Manta Ray Solutions LLC and Perch Infrastructure Pty Ltd, are indirect subsidiaries of Google LLC, a Delaware limited liability company owned by Alphabet, Inc. The IRUs to be acquired will provide Telstra with an exclusive right to use certain fibre pairs on the Pacific Connect Cables for a period of 15 years. Telstra will have the ability to sell some or all of the capacity that it activates on these cables to third parties. The subsea dark fibre being acquired by Telstra will need to be 'lit' by Telstra to enable live services. Telstra will need to install its own electronic equipment, known as submarine line termination equipment, to activate capacity on each of its designated fibre pairs.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

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	a. post-Acquisition, Telstra’s share of fibre pairs and/or capacity on each of the Pacific Connect Cables and other cables connected to Australia is expected to be small b. there are alternative providers of subsea dark fibre and capacity on subsea cables connected to Australia c. the Acquisition is unlikely to foreclose access to the remaining fibre pairs on the Pacific Connect Cables or to capacity on alternative cables connected to Australia for Telstra’s downstream rivals. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act